RESCISSION OF THE GREENHOUSE GAS ENDANGERMENT FINDING — EXCERPT FROM THE FINAL RULE

As promulgated by the Administrator of the Environmental Protection Agency

Extract prepared for the frozen record. Ellipses mark omitted material. The rule is in force and is the subject of pending petitions for review.

Action taken

The Administrator rescinds the 2009 determination that greenhouse gases in the atmosphere endanger public health and welfare, and repeals the greenhouse gas emission standards for new motor vehicles and engines adopted in reliance on it.

Principal grounds

First, that the statutory provision under which the determination was made is directed to air pollution that endangers health or welfare in a manner the Act was designed to address, and that the effects of these gases are globally diffuse rather than regional or local.

Second, that regulation of these gases across the economy is a matter of such economic and political significance that clear congressional authorisation is required, and that the provisions relied on do not supply it.

Third, that the standards repealed would not meaningfully affect the atmospheric concentrations to which the 2009 determination was addressed.

Matters on which the Administrator sought and received comment

The Administrator sought comment on the continued preemptive effect of the Act in the event that the agency determined it lacks authority over these gases. Comments were received both that rescission leaves the Act's occupation of the field untouched and that it removes the basis for it. The Administrator does not resolve the question in this rule and states that nothing in it is intended to express a view on the effect of the Act on State law.

Other rulemakings

The Administrator states that the agency has initiated or intends to initiate separate proceedings addressing greenhouse gas requirements adopted under other provisions of the Act.

Effective on the date stated in the published rule.